Sanctions in the amount of $2571.36 (5.0 hours at $500/hr + $71.36 filing fee). Payable in 30 days to Plaintiff's attorney.

Case Management Conference and Motion to Compel Attendance at Deposition confirmed for 8.06.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO SEVER ON COMPLAINT FOR AUTO (OVER $35,000) OF WENDY ALEJANDRA CORTEZ

Tentative Ruling: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action… or of any separate issue or of any number of causes of action or issues …" (Code Civ. Proc., § 1048, subd. (b).) The court may order bifurcation so that certain issues are tried before others "when the convenience of witnesses, the ends of justice of the economy and efficiency of handling the litigation would be promoted thereby." (Code Civ. Proc., § 598.)

Here, Defendants State Farm and Abebe are seeking to "sever" the lawsuit against them from the lawsuit against Chapman. Clearly, the two lawsuits involve independent claims giving rise to independent liabilities unrelated to fact and law. As moving Defendants point out, Plaintiffs' claims against them are substantially different from the claims against Chapman with respect to law and facts and would unnecessarily confuse the jury on the issue of liability. Plaintiffs' misrepresentation claims against moving Defendants are based on the allegation that: State Farm's claim adjuster Abebe represented to Plaintiffs' counsel during pre-suit negotiations that Defendant Chapman had authorized disclosure of the policy limits and confirmed that the policy coverage was $100,000 bodily injury per person/ $300,000 bodily injury per incident/ $100,000 for property damages. (Complaint, ¶ 29.) In reliance on this representation, Plaintiffs' counsel prepared a "time-limited demand seeking those limits" as Plaintiffs believed that their damages exceeded the limits. (Complaint, ¶¶ 30-31.) However, the representation was in fact untrue in that Abebe subsequently denied ever disclosing the policy limits to Plaintiffs' counsel and claimed that she lacked permission from Chapman to provide that information. (Complaint, ¶ 33.) Plaintiffs allege that Abebe made a misrepresentation to induce Plaintiffs to initiate settlement based on the misrepresentation and that, had such misrepresentation not been made, they would have chosen a "different course." (Complaint, ¶¶ 31, 34.) Plaintiffs allege that they sustained damages in the form of loss of the benefit of a clear and reasonable time-limited demand and incurred unnecessary additional fees and litigation cost. (Complaint, ¶ 37.) It is apparent that the negligence claims against Chapman do not bear on these post-accident occurrences.

As such, separate trials are justified in that there is no benefit or reason for trying all of the claims together as the alleged respective liabilities are not interdependent while a joint trial would be prejudicial to moving Defendants. Generally, an insurer may not be joined as a party-defendant in the underlying action for negligence against the insured by an injured party. (*Royal Surplus Lines Ins. Co, Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193.) Rather, an insurance company may be sued for its own torts arising from the same losses by the injured party who is not its insured. (*Mel H. Binning, Inc. v.*

Safeco Ins. Co. (1977) 74 Cal.App.3d 615, 619 [insurer alleged to have performed acts of intentional misrepresentation and fraud against the third party noninsured].) Hence, there is no benefit of a joint trial while there would be prejudice to moving Defendants in that determination of Chapman's liability may potentially influence the jury to conclude liability on the part of State Farm and Abebe. Further, as moving Defendants explain, the trial of fraudulent misrepresentation claims would require introduction of evidence of insurance whereas it would otherwise be inadmissible in the trial of the negligence claims against Chapman under Evidence Code section 1155, which provides that "[e]vidence that a person was … insured … against loss arising from liability is inadmissible to prove negligence or other wrong doing."

Plaintiffs' opposition provides no valid reason to deny the motion. They assert that damages they suffered from Abebe and State Farm's misrepresentation cannot be measured in isolation because the misrepresentation claims would require Chapman's testimony. However, the sole reason the separate claims would require testimonies from the same person does not mean that duplicative testimonies or evidence would be used in both trials. Further, Plaintiffs' claim that the damages they seek against Abebe and State Farm under the "tort of another doctrine" are measured directly by the extent and scope of the litigation against Chapman is without merit. Plaintiffs' Complaint does not include a count for tort of another nor allege any basis for such a claim.

Defendants Mary Abebe and State Farm Mutual Automobile Insurance Company's Motion to Sever GRANTED.

Defendants Mary Abebe and State Farm Mutual Automobile Insurance Company's Motion to Stay all Proceedings confirmed for 7.24.26.

5.

CASE #	**CASE NAME**	**HEARING NAME**
CVPS2600012	PEARCE VS ELLENZ	DEMURRER ON 1ST AMENDED COMPLAINT OF KENT PEARCE BY TIMOTHY ELLENZ, ANTHONY ELLENZ, CALIFORNIA WINDOW AND DOOR, INC.

Tentative Ruling:

No opposition filed.

Demurrer is SUSTAINED with leave to amend.

Plaintiff to file amended complaint within 20 days. The amended complaint shall address the deficiencies raised in Defendant's Demurrer to the First Amended Complaint, that the 1^{st}-7^{th} causes of action fail to state facts sufficient to constitute a cause of action.

Plaintiff may not amend the complaint to add a new cause of action without moving for leave to amend, unless the new cause of action is within the scope of the court's order. *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4^{th} 1018, 1023.